

Constitutional Amendments of Pakistan

A Complete Guide to the 1st through 27th Amendments to the Constitution
of the Islamic Republic of Pakistan, 1973

Pakistan Legal Reference Series

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Introduction

The Constitution of the Islamic Republic of Pakistan, 1973 is a “rigid” but amendable document. **Article 238** provides that the Constitution may be amended only by an Act of Parliament, and **Article 239** sets out the special procedure: a constitutional amendment Bill requires the votes of **not less than two-thirds of the total membership** of each House (National Assembly and Senate) and, once passed, the **assent of the President** (which, under Article 239(5)-(6), he is bound to give). Amendments cannot be challenged in any court “on any ground whatsoever” — a provision itself strengthened by later amendments.

As of the 27th Amendment (November 2025), the Constitution has been amended twenty-seven times. This document summarizes each amendment, its date, the sponsoring circumstances, and its substantive legal effect — including changes that affect punishments, rights, and the structure of the courts that enforce the law.

Summary Table of All Amendments

#	Year	Short Description
1st	1974	Redefined “Pakistan territories”; addressed recognition of Bangladesh-related matters; strengthened provisions on high treason.
2nd	1974	Declared Ahmadis/Qadianis to be a non-Muslim minority for constitutional purposes (amended Article 260).
3rd	1975	Extended permissible period of preventive detention without a review board.
4th	1975	Curtailed High Courts’ jurisdiction to grant bail/injunctions in preventive-detention cases; added seats for minorities.
5th	1976	Restricted the power of the courts (including Supreme Court) to grant bail; altered tenure/transfer rules for judges.
6th	1976	Allowed the Chief Justice of the Supreme Court and Chief Justices of High Courts to continue in office beyond retirement age until a successor is appointed.
7th	1977	Gave the Prime Minister power to seek a referendum on a vote of confidence; limited High Court jurisdiction over the use of armed forces “in aid of civil power.”
8th	1985	The single most consequential early amendment: inserted Article 58(2)(b) , empowering the President to dissolve the National Assembly at his discretion; validated all laws made under martial law (1977–1985), including the Hudood Ordinances.
9th	<i>(never fully enacted)</i>	A 1985 Bill to enforce Shariah as supreme law — passed by the Senate but lapsed with the dissolution of the Assembly; never became part of the Constitution.
10th	1987	Technical amendment extending the session-summoning period of the National Assembly and Senate.
11th	<i>(not enacted)</i>	A Bill regarding Senate seats that was never passed.
12th	1991	Established Special Courts for Speedy Trials for heinous offences (terrorism, murder, gang rape, etc.) for a temporary period, with enhanced/expedited sentencing procedure.
13th	1997	Repealed Article 58(2)(b) — removed the President’s power to unilaterally dissolve the Assembly; also removed his power to appoint services chiefs and provincial governors without PM’s advice, restoring a parliamentary (rather than semi-presidential) system.

#	Year	Short Description
14th	1997	Introduced strict anti-defection provisions: a member who defects or votes against party lines can be disqualified from the Assembly by the party head, without further inquiry.
15th	(not enacted)	The “Shariah Bill,” which sought to make the Quran and Sunnah the supreme law and give the Federal Government overriding Islamising power; passed the National Assembly in 1998 but lapsed in the Senate.
16th	1999	Extended the quota-based reservation of government jobs and services for under-represented provinces/regions for a further 20 years.
17th	2003	Restored a version of presidential discretionary power (dissolution power reintroduced with checks — later removed again by the 18th Amendment); allowed the President to hold a dual office (President + Army Chief) temporarily; created the National Security Council .
18th	2010	The largest single amendment — reversed most of the 8th and 17th Amendments’ centralising effect: restored a parliamentary form of government, removed Article 58(2)(b) permanently, devolved numerous subjects (education, health, agriculture) to the provinces by abolishing the Concurrent Legislative List, renamed North-West Frontier Province to Khyber Pakhtunkhwa , reformed the process for appointing judges (introduced the Judicial Commission and Parliamentary Committee), and barred a person from being Prime Minister for a third term (later modified).
19th	2010	Amended judicial-appointment procedure following a Supreme Court judgment on the 18th Amendment; adjusted Balochistan Assembly seats and Election Commission composition.
20th	2012	Reformed the process for appointing a neutral caretaker government ahead of general elections, to ensure free and fair polls.

Editorial note: several sources number the 21st Amendment differently; the sequence below follows the most widely cited numbering. | 21st | 2015 | Enacted after the 2014 Peshawar school attack: allowed the trial of civilians accused of terrorism linked to religion or a “sect” by **military courts** for a 2-year sunset period (later extended); amended Article 175 and the First Schedule. | 22nd | 2016 | Changed composition/eligibility rules for the **Election Commission of Pakistan** and allowed retired judges of the Federal Shariat Court more time in service. | 23rd | 2017 | Extended the **military courts** mechanism created by the 21st Amendment for a further 2 years. | 24th | 2017 | Adjusted National/Provincial Assembly **seat allocations** based on

the 2017 census results. || 25th | 2018 | Historic **FATA merger**: abolished the Federally Administered Tribal Areas' special status and merged them into **Khyber Pakhtunkhwa**, extending ordinary law, courts, and fundamental rights to the former tribal areas and repealing the colonial-era Frontier Crimes Regulation. || 26th | 2024 | Major judicial restructuring: created a **Special Parliamentary Committee** to select the Chief Justice of Pakistan from the three most senior judges (ending pure seniority-based appointment); fixed the **CJP's term at 3 years**; removed the Supreme Court's and High Courts' **suo motu** (self-initiated) powers under Articles 184 and 199; created **Constitutional Benches** in the Supreme Court and High Courts to hear constitutional cases; inserted **Article 9A**, a new fundamental right to a clean, healthy and sustainable environment; mandated the elimination of *riba* (interest) from the economy by 1 January 2028 (Article 38). || 27th | 2025 | Created the **Federal Constitutional Court (FCC)**, seated in Islamabad, to take over constitutional interpretation cases from the Supreme Court; restructured military command by creating the post of **Chief of Defence Forces** (held by the Army Chief) and a **Commander, National Strategic Command**; granted **lifetime rank, uniform, and immunity from arrest and civil/criminal proceedings** to officers elevated to five-star rank (new Articles 243(7) and 243(9)); abolished the office of Chairman, Joint Chiefs of Staff Committee. It is among the most debated amendments in Pakistan's history and is the subject of ongoing litigation before the High Courts as of early 2026. |

Detailed Discussion of the Most Significant Amendments

The 8th Amendment (1985) — Presidential Discretion and Indemnity

This amendment fundamentally altered the balance of power by inserting Article 58(2)(b), letting the President dissolve the National Assembly if, in his opinion, "a situation has arisen in which the Government of the Federation cannot be carried on in accordance with the provisions of the Constitution." It was used four times between 1988 and 1996 to dismiss elected governments. It also gave constitutional cover (Article 270-A) to all Presidential Orders, Ordinances, and Martial Law Regulations issued between 1977 and 1985, including the **Hudood Ordinances** (criminal laws on theft, zina/adultery, qazf, and prohibition) — meaning violations of those laws continued to carry the punishments prescribed even after martial law ended.

The 13th and 18th Amendments — Restoring Parliamentary Democracy

The 13th Amendment (1997) removed the President's discretionary dissolution power. The 18th Amendment (2010) went further: it abolished Article 58(2)(b) permanently, devolved major subjects such as education, health, environment, and local government entirely to the provinces, reformed the judicial-appointments process (creating the Judicial Commission of Pakistan and a Parliamentary Committee to vet nominees), gave the provinces greater control over natural resources and the National Finance

Commission Award, and constitutionally guaranteed free education for children aged 5–16 (Article 25-A).

The 21st and 23rd Amendments — Military Courts

Passed after the 2014 Army Public School attack, these amendments permitted trial of civilians in terrorism cases connected with religion/sect by military courts for renewable, time-limited periods, with a distinct (and criticised) procedure and sentencing regime compared to ordinary criminal courts.

The 25th Amendment (2018) — FATA Merger

This ended nearly 150 years of separate legal treatment for the tribal areas under the colonial Frontier Crimes Regulation (FCR), extending the ordinary Pakistan Penal Code, Code of Criminal Procedure, and fundamental-rights protections of the Constitution to the former FATA, now part of Khyber Pakhtunkhwa.

The 26th Amendment (2024) — Judicial Reform

Key changes with practical legal effect:

- **Chief Justice appointment:** no longer automatic by seniority; a Special Parliamentary Committee selects from the three senior-most judges.
- **Fixed CJP tenure:** 3 years, regardless of retirement age.
- **Constitutional Benches:** separate benches of the Supreme Court/High Courts now hear cases involving interpretation of the Constitution, fundamental rights enforcement, and inter-governmental disputes, while ordinary benches handle other appeals.
- **Removal of suo motu powers:** the Supreme Court (Article 184(3)) and High Courts (new Article 199(1A)) can no longer take up matters on their own initiative; a case must be properly filed.
- **Article 9A** (new fundamental right to a clean, healthy, and sustainable environment).
- **Riba elimination deadline:** Article 38(f) commits the State to eliminate interest-based transactions from the economy by 1 January 2028.

The 27th Amendment (2025) — Federal Constitutional Court and Military Restructuring

- Establishes the **Federal Constitutional Court (FCC)**, headquartered in Islamabad, with equal representation from each province, to exclusively hear constitutional interpretation cases, taking this jurisdiction away from the Supreme Court's Constitutional Benches created just a year earlier.
- Creates the position of **Chief of Defence Forces**, held concurrently by the Chief of Army Staff, replacing the Chairman, Joint Chiefs of Staff Committee.
- Creates a **Commander, National Strategic Command** overseeing Pakistan's nuclear command structure.

- New **Article 243(7)**: an officer promoted to five-star rank (Field Marshal, Fleet Admiral, Marshal of the Air Force) retains that rank, uniform, and privileges for life.
- New **Article 243(9)**: grants such officers, along with the President, **lifetime immunity from arrest and from criminal and civil proceedings**.
- The amendment was passed with a two-thirds majority in both Houses in November 2025 and received presidential assent on 13 November 2025. It has triggered significant political controversy and multiple constitutional petitions before the Lahore High Court, Islamabad High Court, and the newly formed FCC, with critics arguing it undermines the separation of powers established by the original 1973 Constitution; supporters frame it as a modernisation of governance and national-security structures. As with any live constitutional dispute, readers should follow current reporting for the latest judicial outcomes.

The Amendment Procedure Itself (Articles 238-239)

Step	Requirement
Introduction	A Constitution (Amendment) Bill may be introduced in either House of Parliament (National Assembly or Senate).
Voting threshold	Must be passed by at least two-thirds of the total membership (not just those present) of each House separately.
Money/finance-linked amendments	If the Bill also affects the procedure of Majlis-e-Shoora, it must be passed by both Houses sitting jointly, in some contexts (historically relevant to some early amendments).
Presidential assent	Once passed by both Houses, the Bill is presented to the President, who must assent within a specified period (Article 75 does not apply in the same way to constitutional Bills — assent is not optional in the way it is for ordinary legislation).
Immunity from judicial review	Article 239(5) and (6) state that no amendment to the Constitution can be called into question in any court on any ground whatsoever — though this provision is itself contested and subject to interpretation by the FCC/Supreme Court in specific cases.

Disclaimer: This summary is provided for general educational purposes. Constitutional interpretation is contested and evolving — for any matter with legal consequences, consult a licensed advocate or the official Gazette of Pakistan text of each amendment Act.